



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

DOT-E 12808
(SECOND REVISION)

400 Seventh St., S.W.
Washington, D.C. 20590

JUL 9 2003

EXPIRATION DATE: June 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Linco-Electromatic Measurement, Inc.
Kilgore, Texas
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the use of a non-DOT specification container described as a truck mounted mechanical displacement meter prover for shipment of certain flammable liquids. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.242(c) and 173.243(c) in that non-DOT specification portable tanks are not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Linco-Electromatic Measurement, Inc. dated June 17, 2003 submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Gasoline	3	UN1203	II
Petroleum crude oil	3	UN1267	I
Petroleum distillates, n.o.s. or Petroleum products, n.o.s.	3	UN1268	I, II, III
Flammable liquids, n.o.s	3	UN1993	I, II, III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification container described as a mechanical displacement meter prover, mounted on a truck chassis or trailer. The meter prover is designed and constructed in accordance with Drawing Numbers 011095 dated 1/10/95, 1920 dated 6/18/87, or 321 dated 6/18/87. The meter prover is made of seamless or welded schedule 40 or stronger pipes ranging in size from 2 to 12 inches outside diameter having a water capacity in the range of 61 to 214 gallons. The truck or trailer is equipped with a 15 or 20 gallon sump tank. Pipe assembly of the meter prover is by ASA welded flange joints of 150 lb., 300 lb., or 600 lb ratings. The maximum service pressure is 275 psig for assemblies with 150 lb. ASA flanges, 720 psig for assemblies with 300 lb ASA flanges, and 1440 psig for assemblies with 600 lb ASA flanges. Pressure relief devices are not required.

b. TESTING - Each meter prover must be initially qualified by hydrostatic pressure test at not less than the following test pressure:

For assemblies with 150 lb. ASA flanges, 275 psig,
for assemblies with 300 lb. ASA flanges, 720 psig,
and for assemblies with 600 lb. ASA flanges, 1440
psig.

Annually, each meter prover must be visually inspected. Every five years, it must be retested by hydrostatic pressure at the pressures shown above.

c. OPERATIONAL CONTROLS -

(1) Immediately prior to highway transportation, the meter prover must be depressurized and partially drained to provide at least 20 gallons of vapor space.

(2) The bumper for the trailer must meet the requirements of §§ 178.345-8(d) and 393.86.

(3) The maximum pressure during transportation may not exceed 25% of the maximum service pressure.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

b. Packagings covered by this exemption must be plainly marked on two opposing sides, "DOT-E 12808", in letters at least two inches high on a contrasting background.

c. New construction is not authorized.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTO/sln